

		Defendant U.S. Specialty Insurance Company to give notice.
6	Leung vs. Felix 30-2023-01357423	Motion to Set Aside / Vacate Dismissal filed by Nozomi T. Leung on 10/29/2024 Plaintiff, Nozomi Leung, moves for an order setting aside the dismissal. The Motion is GRANTED. Plaintiff contends that the Court should set aside the dismissal pursuant to Code of Civil Procedure section 473(b) and set a Case Management Conference because there was excusable neglect as Plaintiff's counsel attempted to attend the hearing on the Court's portal on Zoom but had a difficult time reaching the Court due to problems with their computer. Declaration of Barry Zelner, ¶ 3. Code of Civil Procedure section 473(b) states: The court may, upon any terms as may be just, relieve a party or his or her legal representative from a judgment, dismissal, order, or other proceeding taken against him or her through his or her mistake, inadvertence, surprise, or excusable neglect. Application for this relief shall be accompanied by a copy of the answer or other pleading proposed to be filed therein, otherwise the application shall not be granted, and shall be made within a reasonable time, in no case exceeding six months, after the judgment, dismissal, order, or proceeding was taken. “[A] party who seeks relief under [section 473] must make a showing that due to some mistake, either of fact or of law, of himself [or herself] or of his [or her] counsel, or through some inadvertence, surprise or neglect which may properly be considered excusable, the judgment or order from which he [or she] seeks relief should be reversed. In other words, a burden is imposed upon the party seeking relief to show why he [or she] is entitled to it, and the assumption of this burden necessarily requires the production of evidence.” <i>Kendall v. Barker</i>, 197 Cal. App. 3d 619, 623-624 (1988). In a motion under section 473, the initial burden is on the moving party to prove

inadvertence, surprise, excusable neglect or mistake by a “preponderance of the evidence.” *Id.* at 624.

“The test of whether neglect was excusable is whether ‘a reasonably prudent person under the same or similar circumstances’ might have made the same error.” *Luri v. Greenwald*, 107 Cal. App. 4th 1119, 1128 (2003). The trial court’s discretion to deny a motion for relief under section 473 based on the failure to establish excusable neglect is limited to circumstances where inexcusable neglect is clear. *New Albertsons, Inc. v Superior Court*, 168 Cal. App. 4th 1403, 1419-1420 (2008). “[A]lthough the party moving for relief under section 473 has the burden to show that the mistake, inadvertence, surprise, or neglect was excusable, any doubts as to that showing must be resolved in favor of the moving party.” *Id.* at 1420.

The trial court’s discretion must be exercised “in conformity with the spirit of the law and in a manner to subserve and not to impede or defeat the ends of substantial justice.” *Elston v. City of Turlock*, 38 Cal. 3d 227, 233 (1985) (internal citations and quotations omitted).

On April 17, 2024, the Court set an Order to Show Cause Re: Dismissal (failure to service) and Case Management Conference for 6/3/24, and stated as follows: “Plaintiff is ordered to file proof of service of the summons and complaint on all unserved defendants, including specifically, Alejandra Felix before the hearing. If plaintiff fails to do so, the Court will dismiss the action against any unserved defendant at the hearing unless plaintiff appears and shows good cause otherwise. *See* Cal. Rules of Court, rule 3.110(f); Local Rule 381.” ROA 14. The Court also ordered Plaintiff to file and serve a status report no later than 5 court days before the hearing. *Id.*

On June 3, 2024, the Order to Show Cause Re: Dismissal (failure to serve) and Case Management Conference were continued to August 5, 2024 “to allow time for Defendant Alejandra Felix to be served with the Summons and Complaint.” ROA 22.

		On August 5, 2024, the Court ordered the following: “There being no appearance nor any contact by any party, the Court now orders the entire action dismissed without prejudice.” ROA 27. The instant motion to set aside/vacate dismissal was filed on October 29, 2024 such that it was brought within six (6) months after the dismissal was entered, and is timely. The inability of Plaintiff’s counsel to appear and attend the hearing on August 5, 2024 for the Order to Show Cause Re: Dismissal (failure to serve) and Case Management Conference on Zoom due to problems with counsel’s computer appears to be excusable neglect—though it begs the question: if a computer problem was the culprit, why a simple phone call to the Court clerk communicating the same did not occur. In any case, the motion to set aside dismissal is GRANTED. However, Plaintiff has not filed a proof of service of the Summons and Complaint and presents no evidence regarding the same. Thus, the Court restores the Order to Show Cause Re: Dismissal (failure to service) and Case Management Conference for May 26, 2025 at 1:30 p.m. in Department C11. Plaintiff is—again—ordered to file proof of service of the Summons and Complaint on Defendant, Alejandra Felix, <i>before</i> the hearing. If plaintiff fails to do so, the Court will dismiss the action against any unserved defendant at the hearing unless plaintiff appears and shows good cause otherwise. <i>See</i> Cal. Rules of Court, rule 3.110(f); Local Rule 381.
7	LoanDepot.com, LLC vs. Richards 30-2023-01357538	1. Motion to Compel Further Responses to Special Interrogatories filed by LoanDepot.com, LLC on 2/04/2025 2. Motion to Compel Production filed by LoanDepot.com, LLC on 2/19/2025 IDC calendared for May 2, 2025 at 10:00 a.m.; Motions CONTINUED to May 19, 2025 at 9:00 a.m.